

STATE OF NEW YORK

8451--A

2025-2026 Regular Sessions

IN ASSEMBLY

May 16, 2025

Introduced by M. of A. BRONSON -- read once and referred to the Committee on Codes -- recommitted to the Committee on Codes in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the executive law, in relation to requiring training for police officers on discharging a firearm at a moving vehicle

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subparagraph 2 of paragraph (d) of subdivision 4 of section
2 840 of the executive law, as added by section 1 of part ZZ of chapter 55
3 of the laws of 2019, is amended to read as follows:

4 (2) The model law enforcement use of force policy shall include, but
5 is not limited to:

6 (i) information on current law as it relates to the use of force by
7 police and peace officers;

8 (ii) guidelines regarding when use of force is permitted;

9 (iii) requirements for documenting use of force;

10 (iv) procedures for investigating use of force incidents;

11 (v) guidelines regarding excessive use of force including duty to
12 intervene, reporting, and timely medical treatment for injured persons;

13 (vi) standards for failure to adhere to use of force guidelines;

14 (vii) training mandates on use of force, conflict prevention, conflict
15 resolution and negotiation, de-escalation techniques and strategies,
16 including, but not limited to, interacting with persons presenting in an
17 agitated condition; ~~and~~

18 (viii) prohibited uses of force; and

19 (ix) best practices, policies, and guidelines regarding the discharge
20 of a firearm at a moving vehicle.

21 § 2. Section 840 of the executive law is amended by adding a new
22 subdivision 9 to read as follows:

23 9. The council shall, in addition:

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (a) Develop, maintain and disseminate written policies and procedures
2 regarding use of force by police officers specifically with respect to
3 the discharge of a firearm at a moving vehicle.

4 (b) Recommend to the governor rules and regulations with respect to
5 the establishment and implementation on an ongoing basis of a training
6 program for all current and new police officers as part of required
7 minimum basic training, regarding the policies and procedures estab-
8 lished pursuant to this subdivision, along with recommendations for
9 periodic retraining of police officers.

10 § 3. This act shall take effect on the one hundred eightieth day after
11 it shall have become a law.